INDEPENDENT, ALTERNATIVE, AND COMMUNITY MEDIA AN OPEN READER

Edited and with an introduction by
David W. Park & Meghan Grosse

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Independent, Alternative, and Community Media: An Open Reader

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CHAPTER 21

From Art House to Your House: The Distribution of Quality Cinema on Home Video

Daniel Herbert

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Résumé

Cet article defend l'idée que certains distributeurs de vidéo maison ont joué un rôle important pour donner forme au déplacement historique du « cinéma de qualité » des salles de cinéma au contexte domestique. II examine plus particulierement la compagnie Kino International, Facets Multimedia et Zeitgeist Film pour comprendre de façon plus compléte comment se créent et circulent les notions de valeur et de qualité dans le domaine de la vidéo maison. Alors que Kino International offre une sélection éclectique de films étrangers et de classiques du cinéma muet et que Facets Multimedia se spécialise dans la production internationale, le documentaire et les film pour enfants, Zeitgeist se concentre plutôt sur le documentaire et les films d'une poignée d'auteurs choisis. En dépit des différences apparentes, chaque compagnie élargie, raffine et complexifie Jes critères constitutifs de la vidéo maison de qualité en se fondant et en redéployant les notions d'exclusivité, d'exotisme, d'intellectualisme et d'activisme social. En défendant cette idée et en faisant aussi allusion à de nouveaux services comme le site de distribution par transit de données Mubi, cet article fait valoir l'idée que la "distribution" est un moment déterminant où la valeur économique et culturelle du produit se façonnent.

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If we take it that "film" is a particular technology for the capture and presentation of moving images, and that "cinema" more broadly describes the social arrangements through which moving images are produced, circulated, and consumed,[1] then over the last several decades cinema has not "died" but rather proliferated and transformed.[2] Specifically, celluloid-rendered images and theatrical viewing practices have been ostensibly displaced by waves of different video technologies and the domestic consumption of media in general. In this transfer from one techno-social arrangement to another, the features that constitute "quality cinema" and "film art" have been contested and rearranged, although not upended entirely. As Charles Acland has indicated, media technologies do not simply disappear when new ones appear, nor do all the practices by which these technologies are used.[3] His point suggests the continual need to investigate the creation, exchange, and use of cinematic wealth and value in the face of technological change; in this case, to understand how distinction operates in the realm of home video.

Home video distributors have played a critical role in shaping the historical shift of "quality cinema" from theatrical to domestic contexts. As James Kendrick and Barbara Klinger have discussed, the most prominent among them is The Criterion Collection, which has created a canon of cinema based on exclusivity and eclecticism.[4] In addition to their highly selective catalogue, Criterion has also distinguished itself by providing rich "bonus" materials, such as commentaries by film artists and scholars as well as supplemental essays; further, the company typically promises to release only the best digital transfers of their movies. Yet, it is important to note that Criterion has not been the only player in this arena and the senses of "quality" they have cultivated comprise only one part of the larger distribution of attitudes toward home video.[5] This essay examines Kino International, Facets Multimedia, Zeitgeist Films, and Mubi (formerly The Auteurs), a streaming media website,[6] in order to more fully understand the creation and dispersal of notions of value and "quality" in the home video arena. Whereas Kino International provides an eclectic mix of foreign films and silent film

[1] This differentiation derives from Christian Metz, *Langage et Cinema, Nouvelle edition augmentee d'une postface* (Paris: Editions Albatros, 19TT), 7. I am particularly inspired by David James's use of this formulation in *Allegories of Cinema: American Film in the Sixties* (Princeton, NJ: Princeton University Press, 1989), 5–6.

[2] Anne Friedberg, "The End of Cinema: Multimedia and Technological Change," in *Reinventing Film Studies*, ed. Christine Gledhill and Linda Williams (New York: Oxford University Press, 2000), 438–452.

[3] Charles R. Acland, "Introduction: Residual Media," in *Residual Media*, ed. Charles R. Acland (Minneapolis: University of Minnesota Press, 2007), xv.

[4] James Kendrick, "What is the Criterion?: The Criterion Collection as an Archive of Film as Culture," *Journal of Film and Video* 53.2–3 (Summer/Fall 2001): 125. In her assertion that the Criterion Collection was influential in connoting a "high art" quality to certain DVD releases, Klinger has written that Criterion helped create "the perception that the digital era in theatrical cinema has finally found its aesthetic equivalent on the domestic front in DVD." Barbara Klinger, *Beyond the Multiplex: Cinema, New Technologies, and the Home* (Berkeley: University of California Press, 2006), 61.

[5] Where Kendrick focuses on Criterion's peculiar selectivity as a means by which archival practices and values have been transferred and democratized to some degree, Klinger focuses on the production of "collectability" as a quality of DVD cinema that is subsequently taken up by domestic media consumers. She highlights how the transfer of cinephilia into domestic movie consumption has been paired with technophilia. Ibid., 56 and 75.

[6] The Auteurs changed its name to Mubi on 13 May 2010. Anne Thompson, "The Auteurs is Now Mubi," Indiewire.com, 13 May 2010, http://blogs.indiewire.com/thompsononhollywood/2010/05/13/the_auteurs_is_now_mubi (accessed 14 July 2010).

classics, and Facets specializes in international, documentary, and children's films, Zeitgeist focuses on documentaries and a handful of select auteurs. Despite these apparent differences, however, all expand, refine, and complicate "quality" home video by drawing upon and redeploying qualities of exclusivity, exoticism, intellectualism, and social activism.

Additionally, these companies have used these techniques to contend with changes in the technological and cultural conditions pertaining to them. Some of these companies were able to distinguish themselves from the chaos that characterized the early days of home video distribution. In this way, what seems marginal and even elite served an important economic function. Further, despite the slipperiness of each company's identity, the relative stability of each firm's mission assisted them in creating and maintaining additional business endeavors, including theatrical distribution and exhibition. Perhaps most importantly, these companies were instrumental in converting highly refined notions of cinematic quality from one industrial/cultural arrangement to another, from theatrical to domestic distribution and exhibition.[7] This supposedly stable situation is itself characterized by turmoil and change, as seen presently by the growth of rent-by mail, video-on-demand (VOD), and internet streaming distribution systems. Thus each company faces new challenges and challengers, such as the Mubi website, that they are meeting according to their own logics, which are themselves extensions of their past actions.

In examining the operational logics of these companies, I wish to indicate the importance of distribution by extending the implications of the term. In the majority of media industry studies, "distribution" primarily refers to that sector of the industry that orchestrates and accomplishes the movement of commodities from producers to consumers. Indeed, in its industrially dominant form, it is the bottleneck through which the mass of productions must pass in order to reach their potentially vast audiences.[8] In critical political economic theory, however, "distribution" can refer to the general dispersal of wealth in a society.[9] These two meanings of distribution—the process by which specific commodities circulate as well as the social allocation of wealth—are best understood when set in relation with one another. In this sense, distribution is a determinant moment when the economic *and* cultural value of a commodity is produced. Conceptualizing distribution in this way is particularly important for understanding cultural commodities, as their value is so closely tied to the formation of ideas, beliefs, and social identities. Thus, assessing how such commodities accrue cultural value requires analysis of the ways in which the forms of their exchange bear upon their relative value in general.

Early Distinctions

Joshua Greenberg has argued that early video distributors "invented" home video, as companies like Magnetic Video were the first to conceive of using magnetic tape to play Hol-

[7] A similar argument regarding The Criterion Collection is made by Klinger, 60.

[8] This fact led Nicholas Garnham to identify distribution as the most important element to understanding the political economy of the media industries. Nicholas Garnham, *Capitalism and Communication: Global Culture and the Economics of Information*, ed. Fred Inglis (London: SAGE Publications, 1990), 161–162.

[9] As Marx wrote, "in production the members of society appropriate (create, shape) the products of nature in accord with human needs; distribution determines the proportion in which the individual shares in the product." Karl Marx, *The Grundisse* (London: Penguin Books, 1993), 88–89.

lywood films.[10] Analogously, Facets and Kino invented the idea of art cinema for domestic consumption; founded after these companies, Zeitgeist followed suit and navigated both the traditional and home theater markets. In large part, they accomplished this by distinguishing themselves from a range of alternatives. Frederick Wasser and Greenberg have described how, in its beginnings, home video distribution was neglected by the Hollywood studios, thus allowing a number of independent companies to enter the emerging field.[11] Many early independent distributors gained their foothold by releasing "side-stream" content, including workout tapes and children's programming.[12] Simultaneous with these numerous startups that specialized in non-Hollywood material, there was also a confusing number of mergers and acquisitions, and a proliferation of sub-labels within labels.[13] Although the Hollywood studios did open their own in-house video divisions by the beginning of the 1980s, their efforts were varied and tentative. They largely served as defensive responses to the prolific number of independent video distributors and music distributors who entered the video market.[14] Only in some cases did Hollywood studios work in-house to get their content via magnetic tape to retailers, thereby allowing for a space for independent video distribution, and even sub-distributors, or "middle middle men."[15] Thus video differed from theatrical distribution structurally, and fairly quickly in its growth it adopted a model based on the music business, where studios worked through wholesalers to bring their product to retailers.[16] These early years, from about 1977 to 1982, represent a moment of turmoil, change, and growth.

Eventually, however, the Hollywood studios gained control of the market.[17] Through the 1980s, they increasingly tried to homogenize the video market with a two-tiered pricing scheme aimed to promote the newest releases.[18] Their consolidation was augmented through the late 1990s through the general application of revenue-sharing practices on the part of corporate video chains and independent stores that used Rentrak as their distributor. These services allowed stores to guarantee that new releases would be available on "opening" weekends. As these endeavors prioritized "new releases" and "hit films," the home video rental market was rendered increasingly Hollywood-centric.

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[10] Joshua Greenberg, *From Betamax to Blockbuster: Video Stores and the Invention of Movies on Video* (Cambridge, MA: MIT Press, 2008), 7, 52–56.

[11] Frederick Wasser, Veni, Vidi, Video: *The Hollywood Empire and the VCR* (Austin: University of Texas Press, 2001), 10, 95; Greenberg. 2–3, 56–59. Wasser has profiled the development and fates of some of the more interesting independent video distributors, including Media Home Entertainment and Vestron. Wasser, l 06–107.

[12] For example, the Nostalgia Merchant released public domain classic films, while Goodtimes Home Video released the *Sweatin' to the Oldies* series of workout tapes. This historically followed the success of *Jane Fonda's Workout* in 1982. See Wasser, 125.

[13] The fan website *Critical Condition*, built and operated by Fred Adelman, provides a well researched visual documentation of a vast number of these companies, as well as brief narratives about their beginnings and eventual fates. Notably, Lionsgate Home Entertainment holds the rights to a large number of titles originally distributed by the independents. "Critical Condition: Obscure & Bizarre Films on Video & DVD," Critical Condition http://www.critcononline.com (accessed 11 July 11 2010).

[14] Greenberg. 56–57. Wasser, 96, has an excellent chart of the "stages" in which the studios entered video distribution.

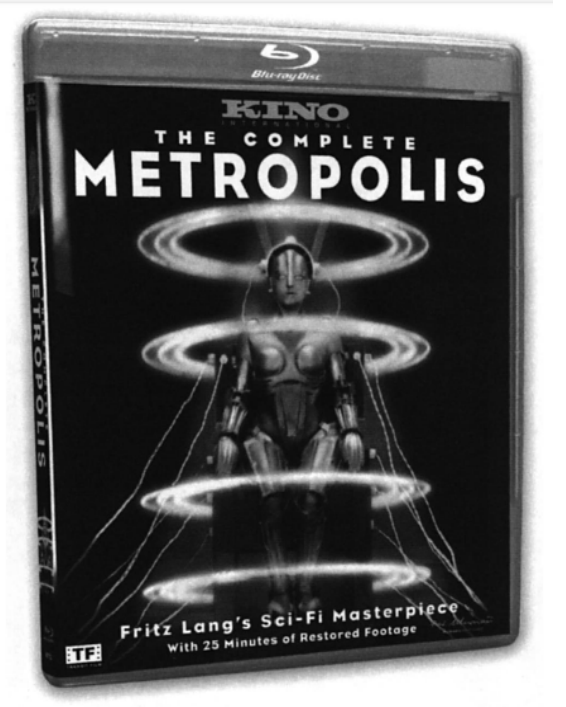
[15] Ibid., 95.

[16] Ibid., 143–152; Greenberg, 56.

[17] Wasser, 183–184; McDonald, 123.

[18] Wasser, 131–135.

It is amidst and in contradistinction to these conditions that Kino International and Facets Multimedia defined themselves, gaining economic viability and cultural prestige, and even economic viability through cultural prestige. They offered comparatively "better" titles than Hollywood releases, meaning more selective, less tied to Hollywood release schedules, and displaying an affection for the "classic" and the "artful." In this business approach, Kino and Facets also distinguished themselves from the bulk of other independent distributors at the time, who more often than not catered in public domain titles, horror films, or cheap action films, a fact that rendered the very phrase "direct-to-video" a signifier of second-rate content that still lingers today.[19] Just as they distributed movies, they distributed an idea about movies, and about what counts as quality cinema and quality home media.



Kino recently released a "complete" version of Metropolis in theaters and on home video, blurring the lines between "art house" and your house. (Photo credit: Kino International)

Founded in New York in 1976, Kino distributed silent and "classic" American films to the art house theaters of the time. They released respected foreign films as well, as they were licensed to release Janus Collection titles in theaters. Donald Krim bought the fledgling company in 1977. After earning a law degree, Krim worked in the "non-theatrical" department of United Artists, which handled film rentals to college campuses and similar non-traditional venues.[20] This provided experience in getting films to audiences, in marketing

[19] This was not and is not universally true, as seen for instance with the "Original Video (OV)" and "V-cinema" industries in Japan. Mark Schilling. *Contemporary Japanese Film* (New York: Weatherhill, 1999), 29.

[20] Eugene Hernandez, "Positioned for the Digital Future, Lorber and Krim Still Favor the Big Screen," *Indiewire.com*, 9 December 2009, http://www.indiewire.com/artic/e/positioned_for_the_digita/Juture_krim_lorber_stil/Javor_the_big_screen (accessed 11 July 2010).

non-conventional theatrical releases, and in understanding the audiences who had a taste for such fare. Kino's focus was cinema that was thought to be "classic" rather than old, films that had earned prestige previously through awards or critical acknowledgment, such as films by Charlie Chaplin and Alfred Hitchcock. By the time Kino started its home video distribution division in 1987, they were already associated with quality cinema, "quality" here meaning American films from the past that remained historically important or aesthetically impressive, and foreign films both classic and new.

Facets Multimedia had similarly humble but distinguished beginnings. The company was founded in 1975 by Milos Stehlik and Nicole Dreiske as a film exhibition center in Chicago, which focused on international and American art cinema, non-Hollywood children's films, and experimental live performance.[21] By the early 1980s, however, the operation expanded to include an adjacent video rental store that specialized in "art house" fare as well as the distribution of art cinema titles on video. Stehlik set Facets, like Kino, apart within the field of media distribution at the time by treating movies on video as, in his terms, "cinema." Also like Kino, Facets began in the days before the VCR became a viable option for media consumption, and so worked within a frame of reference for "quality" cinema that derived from the celluloid and theater based context. Both companies thus upheld the notion that cinema is made for artistic rather than simply commercial or entertainment purposes, and displaced this notion from celluloid and the art house theater onto magnetic tape and the VCR. Their vision was to provide for the art house in your house.

Although newer and smaller than these other two companies, Zeitgeist Films has operated in an analogous manner and carved a comparable cultural space for itself. The company was formed in 1988 in New York, when, according to a producer there, the art house market remained viable, even if it was small and facing serious challenges. Unlike Kino and Facets, Zeitgeist still thinks of itself primarily as a theatrical release company, with home video being a necessary but adjacent element of their operations. One producer at Zeitgeist acknowledges the company's mission and stature by saying it does "boutique on a budget." They typically only release about six movies in theaters each year. Nevertheless, as they eventually distribute all their theatrical releases on home video, as well as a handful of titles for which they do not handle theatrical release, they remain an important name in the specialty video market.

Qualities of Quality and Techniques of Taste

Cultural distinction does not guarantee success. The owners and operators of Kino, Facets, and Zeitgeist had experience in the art house theatrical market. Their intervention was in attempting to bring this conception to a new technol ogy and into a new social pattern of use. In order to succeed, there needed to be a coordination among these distributors with a larger public, a set of retailers and customers who were amenable to conceiving of home video in similar terms. This suggests an alignment among social fields in which cultural goods accrue particular values; Pierre Bourdieu's work on social fields, taste, and cultural stratification is instructive on this point. "Taste," he famously wrote, "is a practical mastery of *distributions*

[21] Milos Stehlik quoted in Jason Guerassio, "Facets Multi Media," *Independent Film and Video Monthly* 26.6 (July/August 2003): 25.

which make it possible to sense or intuit what is likely (or unlikely) to befall... an individual occupying a given position in social space" (emphasis added).[22]

He elaborated how such taste values, or "dispositions," operate in the world of cultural production and circulation, and two elements of this seem particularly germane in the context of specialty home video distribution. First, he differentiates between "large-scale" and "restricted" production.[23] Where large-scale production "submits to the laws of competition for the conquest of the largest possible market, the field of restricted production tends to develop its own criteria for the evaluation of its products."[24] Second, this process of production and of the production of value resonates with a larger social sphere. For both the commercial and art minded cultural producer, he writes, the "ultimate and often indefinable principle behind his [sic] choices finds itself continually strengthened and confirmed by his perception of the selective choices of authors and by the representations authors, critics, the public and other publishers have of his function within the division of intellectual labor."[25] The specialty distributors discussed here have behaved analogously to the publishers of "classic" literature described by Bourdieu, by having actively fostered exclusivity, cosmopolitanism, intellectualism, and social activism. These characteristics resonate with elite and academic conceptions of film-as-art. Although these qualities of "quality" often overlap, they are identifiable in specific, concrete techniques undertaken by these distributors. Further, they used their accrued cultural capital to move from one technology to another and from one social use of media to another. In this respect, they have not just coordinated with a social formation, but altered it.

What Bourdieu calls "restricted production" aligns most readily with the quality of *exclusivity.*[26] The Criterion Collection has developed this strategy quite remarkably, as they only have around 500 film titles under their banner, but it is practiced by Kino International and Facets as well. Kino distributes a broad range of titles, including silent classics (the films of Buster Keaton), American independent cinema (*Daughters of the Dust*, Julie Dash, 1994), and "The Best of World Cinema" (*Himalaya*, Eric Valli, 2000). This breadth could appear to convey a sense of inclusiveness rather than exclusivity. Facets would also appear to be anything but restrictive at first glance, as they handle the distribution of over 70,000 titles. However, in both cases, the companies reveal rather strict parameters on what they release, namely movies that are outside the contemporary mainstream and that have pretensions of refinement. Although circumscribed by economic necessity, each company selects and promotes a rarified cinema.

In the case of Kino, this exclusivity is in part derived from their strong relationship with film archives and preservationist institutions. Specifically, Kino has been able to "branch out," in the words of one company employee, into American independent and contemporary world cinema because they have such a solid base in silent film classics from across the

[22] Pierre Bourdieu, *Distinction: A Social Critique of the Judgment of Taste*, trans. Richard Nice (Cambridge, MA: Harvard University Press, 1987), 466.

[23] Pierre Bourdieu, *The Field of Cultural Production* (New York: Columbia University Press, 1993), 115.

[24] Ibid., 115.

[25] Ibid., 134.

[26] Exclusivity is not unique to "high quality" cultural production in the contemporary period. Low-brow video distributors, such as Something Weird Video, regularly make similar claims to exclusivity. Jeffrey Sconce has discussed the use of high-brow strategies by low brow cultural producers in ""Trashing' the Academy: Taste, Excess, and an Emerging Politics of Cinematic Style," *Screen* 36.4 (Winter 1995): 371–393.

world. Although they lost access to the Janus Collection films to the Criterion Collection, Kino behaves similarly to Criterion by relying upon a stable base of classics that can be sold and resold on a regular basis, such as *Battleship Potemkin* (Sergei Eisenstein, 1925) or the box-set *The Movies Begin*, which features a vast number of films representing all manner of early cinema. In the latter case, as well as with such collections as *Edison: The Invention of the Movies*, Kino's ongoing good relations with the Motion Picture Collection at George Eastman House is vital. The company has worked with this archive and others, including the Museum of Modern Art in New York, in order to obtain high-quality prints of films that have been previously consecrated. As Kino has successfully promoted these titles in the home video market, representing their interests and those of their institutional affiliates, these institutions then help Kino with subsequent projects, creating a virtuous circle of status and quality.

Another way that these companies maintain a sense of exclusivity is through their access to international cinema at film festivals and the distribution markets that occur there; moreover, this process conflates the sense of exclusivity with that of *cosmopolitanism*. Kino International regularly sends representatives to the festivals at Rotterdam, Toronto, Cannes, and Sundance, and Zeitgeist like wise sends scouts to these festivals and others that cater in international art cinema, such as Berlin. Certainly, this is not a surprising practice on their part, as the markets at international film festivals have served as crucial links between the production and consumption of world cinema for many years. The point is that by entering these markets and engaging in these social arenas, these companies position themselves in competition with larger distributors, such as the specialty divisions of the major Hollywood studios, which often focus on theatrical distribution. Even more importantly, participation in these festival markets aligns these video distributors with a stratum of cinema culture where select films gain early approval and cultural consecration. This puts Kino and Zeitgeist in a privileged position to internalize and subsequently disseminate the values regarding cinema fostered at these festivals.

Facets combines exclusivity with cosmopolitanism in a different manner. It should be noted that Facets does not in fact distribute the 70,000 titles they have access to; the majority of these titles are actually distributed by other companies, including Kino and Zeitgeist among others, and Facets serves as the wholesaler that brings these commodities to market. In terms of the titles they distribute themselves, Stehlik says that Facets takes a "curatorial" approach, seeking out and filling holes in the home video landscape. In practice, this can mean a single film title that is not available, but more often it means films produced in certain areas of the world that are under-represented in the North American market. Stehlik opposes this to what he calls the "clearinghouse" models adopted by Amazon and Netflix. As of today, he has said, "Facets Video hosts three exclusive video lines: Accent Cinema, a world cinema label that has particular strengths in Europe; Cinemateca, a Spanish world cinema label that features films from Spain and Latin America; the Facets Video label, a world cinema label that has particular strengths in Middle Europe, the Middle East, and American independents." Stehlik has said that they acquire "between twelve to eighteen films annually for exclusive release on the Facets label; [and] another twenty for exclusive distribution, and four to five thousand new titles every year for nonexclusive distribution." Whereas Kino offers "The Best in World Cinema," (although they demonstrate a particular strength in Russian cinema), and whereas Criterion provides a highly restrictive selection of "A-list" foreign films, Facets

has carved a niche within niche home video by distributing films from areas that are more under-represented than other more recognized national cinemas. Stehlik has publicly emphasized Facets's exclusivity, stating, "it is very difficult [for Facets] to distribute independent features that aim at a broad, middle-brow audience and which emulate Hollywood films or television. There are other distributors that are perfectly capable of moving these films into the marketplace."[27]

Whether dealing with their own titles or those that they wholesale for other distributors, Facets has been instrumental in distributing exclusive, cosmopolitan, and generally *intellectual* notions of cinema through their catalogue. Indeed, one can find that the ingenious organization of many specialty video stores actually conforms to categories instituted in the Facets catalogue, which generally follows accepted typologies of national cinemas and auteurs. For many years a print publication, the catalogue is now only online; they issued their last paper catalogue in 2007. Although the catalogue is accessed differently as a result, the logics about "cinematic quality" initiated in the print catalogue have maintained in the transfer to the digital format. As opposed to mainstream distributors and wholesalers such as Ingram Entertainment Inc., Video Products Distributors, Inc. (VPD), or Rentrak, which uphold a "new release" mentality that is reflected in the volume of New Release shelf-space in corporate chain stores, Facets's catalogue is quite particular in its categorization. As just one example, within the "European Cinema" division of the online catalogue, one finds a plethora of subdivisions, organized either by recognized directors, such as Tony Gatlif or Agnes Varda, or by country, such as Irish cinema or Norwegian Cinema.[28] This highly refined partitioning of cinema accords with the impulse toward taxonomization found in scholarly approaches toward film and other visual arts. Further, it helps to inform retailers and, eventually, video store browsers who must navigate (perhaps with the assistance of a clerk) these categories in order to find a specific title.

Somewhat similarly, Zeitgeist upholds a film-as-art notion of home video through their work with a small but specific selection of renowned world cinema auteurs. Two of the most notable are Atom Egoyan, particularly his early features, and Guy Maddin, with whom Zeitgeist apparently has an exclusive relationship due to longstanding positive interactions. This auteurism is quite personal in some cases. Because Zeitgeist simply does not have much money to devote to the production of extra features, they rely on the filmmakers themselves for "bonus" material. On the one hand, this renders their relationship with select directors intimate, but on the other hand, and as a consequence, the intellectual and creative singularity of these directors is reinforced by their involvement in the DVD production and marketing processes.

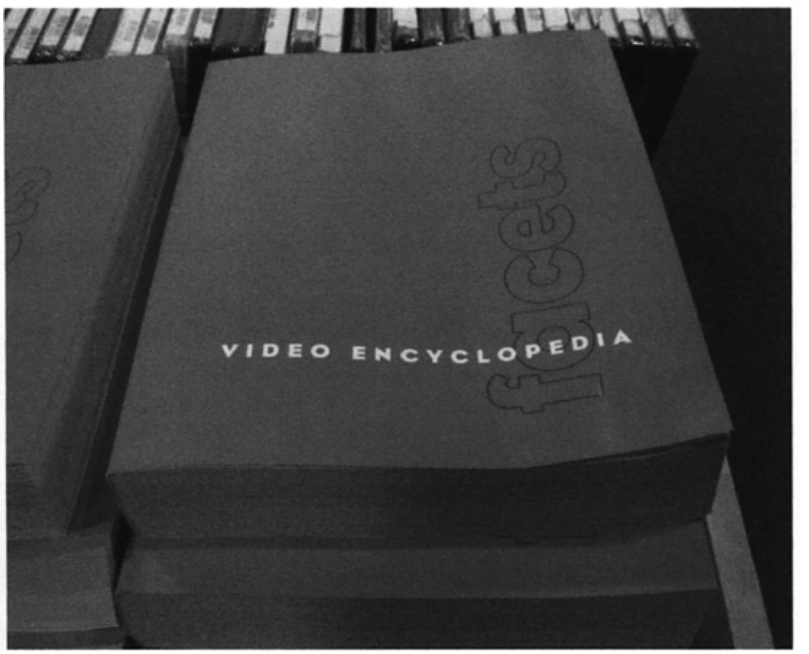
James Kendrick argues that The Criterion Collection constitutes a video archive of "important" films, and is able to consecrate its selected released as important films,[29] thus prompting consumers to evaluate the merits of *The Seventh Seal* (Ingmar Bergman, 1957) in relation to *Armageddon* (Michael Bay, 1998) and the *Beastie Boys Video Anthology* (various, 2000). What is the criterion, indeed? Alternatively, Kino, Facets, and Zeitgeist leave little question as to why

[27] Quoted in Guerassio, 27.

[28] "Browse All Genres," Facetsmovies.com, http://www.facetsmovies.com/user/movieBrowseByType.php(accessed 17 June 2010).

[29] Kendrick, 125.

their films hold value, particularly intellectual value. Kino does not constitute an archive, but rather provides access, for a price, to existing film archives and their ongoing efforts at film preservation and restoration. Facets is not precisely an archive either, except perhaps at their rental location in Chicago, but rather is a disseminator of conceptual categories by which to organize the otherwise unruly mass of non-Hollywood cinema. And although Derek Jarman may not command the same recognition as, say, Akira Kurosawa, Zeitgeist's adherence to an auteurist approach to their titles demonstrates a general faith in film-as-art (hence the need for a film artist) and a pseudo-academic impulse to categorize films according to a preconceived



The Facets Video Encyclopedia not only provides capsule reviews of innumerable films, it also functions as a catalogue for these titles, listing their price. The Encyclopedia is organized mainly by nation and director.

shared sensibility. Most blatantly, perhaps, Zeitgeist reveals an intellectualist approach to home video through their release of documentaries about contemporary philosophers and social theorists, including their films *Derrida* (Kirby Dick and Amy Ziering Kofman, 2002) and *Zizek!* (Astra Taylor, 2005).

The intellectualism disseminated by these companies is also internal to them as a general working philosophy and institutional objective. Many if not most of the producers and other employees at Kino and Zeitgeist have degrees in Film and/or Media Studies, and in personal interviews these subjects will cite this educational history as important to their current work. Milos Stehlik of Facets proclaims overtly that media education should be a mandatory element of pub lic education and should begin quite early in children's curricula. The emphasis on children's media at Facets, a genre that the company has promoted almost since its beginnings through the Chicago International Children's Film Festival, testifies to the company's sense of media as *enrichment* rather than entertainment. Indeed, in 1996 they released the *Facets*

Non-Violent, Non-Sexist Children's Video Guide.[30] This title presents a category of opposition more than of affiliation.[31] They also offer film appreciation classes at their Cinematheque on a regular basis, including such courses as "Cinema and Surveillance" and "Odd Couples: The Buddy Comedies of Billy Wilder." Facets's position is seen even more clearly in their status as a "non-profit, 501*(C)*3 organization, and a leading national media arts organization... [and their] mission is to preserve, present, distribute, and educate about film."[32] Their status as a cultural, educational institution has been recognized by the National Endowment for the Arts, the Illinois Arts Council, the John D. and Catherine T. MacArthur Foundation, the Chicago Community Trust, and the Academy of Motion Picture Arts and Sciences, all of whom support Facets with funding. The website for the National Film Registry provides a link to Facets below the question, "How do I obtain DVDs or videos of National Film Registry titles?"[33]

The intellectual pedigree embodied within these companies coordinates with and flows outward through their sales to educational institutions. As Stehlik recalls, the video transition of the 1980s devastated the market for 16mm film rentals, which teachers at both high school and university levels used regularly. Consequently, he states, many educators relied on Facets's video releases; apparently, they recognized and affirmed the sense of intellectual value Facets saw in these movies. In the case of Kino, it is their strength in silent cinema that makes them particularly valuable to universities with film history courses. One Kino employee states that the company's silent film packages, for instance, are "tailor made for college classes"; one thinks immediately not only of the Edison shorts or *The Movies Begin*, but also about Kino's releases of such film history standards as *Intolerance* (D.W. Griffith, 1916), *Metropolis* (Fritz Lang, 1927), or *The Thief of Bagdad* (Raoul Walsh, 1924).

This academic affinity suggests the creation and sustaining of a virtuous "circle of belief,"[34] if not an outright homology, among different social fields. Specifically, the value of cinematic art developed in cinematheques coordinates with that cultivated in academic settings, film festivals, and among cinephilic video storeowners. Kino, Facets, and Zeitgeist harmonized with these social fields and helped to deliver the sense of cinema developed there into the video store, into the home, and even back into the classroom. The social function of these companies in fact constitutes a soical activism. Facets's protectionist approach toward children's media has already been noted. Zeitgeist, alternatively, demonstrates a vaguely left-leaning but vehemently anti-corporate, anti-big-media agenda through their release of select documentary films, a disposition that accords with their own position vis a vis the mass media. Titles such as *The Corporation* (Mark Achbar, Jennifer Abbott, and Joel Bakan, 2003), *Manufacturing Consent: Noam Chomsky and the Media* (Mark Achbar and Peter Wintonick, 1992), *A Place Called Chiapas* (Nettie Wild, 1998), and *Trouble the Water* (Tia Lessin and Carl Deal, 2008) all attest to Zeitgeist's strategic commercialization of activist media production.

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[30] Virginia Boyle, ed., *Facets Non-Violent Non-Sexist Children's Video Guide* (Chicago: Academy Chicago Publishers, 1996).

[31] This implicitly evokes Bourdieu's assertion that, "in matters of taste, more than anywhere else, all determination is negation." Bourdieu, Distinction, 56.

[32] "About Us," Facets.org, http://www.facets.org/pages/aboutus.php (accessed 17 June 2010).

[33] "National Film Preservation Board: National Film Registry," http://www.loc.gov/film/filmnfr.html (accessed 17 June 2010).

[34] Bourdieu, *The Field of Cultural Production*, 77–78.

Even more than externalizing and projecting a particular political agenda, these companies demonstrate activism within the social field of independent media that they inhabit and sustain. In addition to the formal education that many employees at these companies attained, a large number of them have also circulated within a larger "indie" media sphere where cinephilia itself was a functioning ideology. During or after getting their college degrees, a number of these employees worked at independent video stores. As with many current and former video store workers, they remark upon the social interactions occurring at the video store as important elements of this position, making it more than just a job but closer to a vocation. One producer "admitted" to being a film buff, "guilty as charged."[35] Another distribution employee asserted that working at an independent specialty video store was vital to engendering a sense of cinematic breadth and eclecticism as *collective* values. "People who worked [there]," he stated, "felt very passionately about films and that was the place to be to be around people who felt similarly."[36] The strength of this harmonization is demonstrated particularly well by the fact that the primary sales representative for one of the companies was once the buyer at one of the largest and most respected independent video stores in the country. Here, a perfect reversal of roles reflects the interchangeability of the attitudes shared by each position.

This shared sensibility of media quality-for the sake of quality-regularly guides the choices and activities of these companies, making it a *de facto* mission and operating logic. It can be formalized, as in the case of Facets's status as a non-profit arts organization. "You have to build your own infrastructure," says Stehlik, "if you want to do something in mainstream culture."[37] More often, how ever, this sense of activism is informal and internalized. Given the financial constraints put upon both Kino and Zeitgeist, they cannot afford conventional market research or intense promotion of their product. Instead, they must gamble on the possibility that their clients and customers share their taste. At Kino, this can mean trying to repeat the success of one of their "hits," such as with their continuing line of avant-garde films from the pre-WWII period. Zeitgeist similarly has to do a bit of guesswork in predicting what will work for the company, but this guesswork is offset by past successes as well as the cultural capital that gets embodied by the individual employees and institutionalized through their decisions and actions. Although generally distributing documentaries, select auteur films, and independent art cinema, it is often chance and a producer's taste that guides the selection of film titles at Zeitgeist. In the words of one pro ducer there, who formerly worked at Criterion, one simply has to "believe" in the movies that they choose; they must feel a passion for them, or else the uphill battle against the economic limitations of niche cinema would be overwhelming. As Zeitgeist has no formal market research tools, they claim to generally "know" their market, basing their assumptions on past successes. Here, the "circle of belief" functions as a taste-based business model. Their faith in art cinema goes hand in hand with a faith that this is a disposition that they share with their customers. They trust that they will have customers because they are the kind of people who would be their customers.

[35] Anonymous specialty video distribution worker, interview with Jacob Mendel. 10 April 2009.

[36] Ibid. 25 August 2009.

[37] Milos Stehlik, interview with Peter Alilunas. 25 June 2009.

The Future: Where Art...Art?

Kino, Facets, and Zeitgeist thus contended with the challenges of the changing home video landscape over the last twenty-five years. Each has managed to succeed in creating an identity for themselves, which in turn helped them create bridges from art house theaters to domestic media consumption and then from VHS to DVD. But media distribution is undergoing yet another transformation. In a recent *Los Angeles Times* article, the head of Home Entertainment at Sony Pictures acknowledged that DVD sales were declining rapidly, that Redbox was causing industry confusion, that Blu-ray was likely never to have the same impact as DVD, and that digital downloading showed "nice growth."[38] Six years after Chris Anderson discussed the development of the "long tail," by which digital and semi-digital distribution systems facilitated the proliferation and economic feasibility of niche media, there has indeed been a proliferation of new means for the dissemination and consumption of moving images.[39] This has caused as much experimentation as was seen in the early days of home video, as the Hollywood studios and other major content providers assess new techno logical possibilities, such as internet streaming and VOD, and economic models, such as subscription-based access to content. On the one hand, not all of these transformations are positive for the majors. As one Home Entertainment execu tive for a major Hollywood studio stated, "from my perspective, the deals that the Hollywood studios have cut with Netflix on their streaming model I think are some of the single worst business decisions that the studios have ever made in the industry of home entertainment," due to the fact that it keeps people from going out and spending money on new releases.[40] On the other hand, given their established position within the media business as well as their economic power, it does seem inevitable that the major players in media distribution, including the Hollywood studios, Ingram, and VPD, will continue to navigate and shape the way content flows across screens, from Hulu to streaming Netflix, to Pay Per View, to YouTube.

But what does this mean for the eclectic boutique art-cinema distributors like those discussed above? Content-wise, these companies have been part of the "long tail" before such a thing was identified. Facets, in fact, instituted a "long tail" model for bringing their product to market in the days before digital technology, as they have provided a rent-by-mail system through their rental location since 1983. In this way, they served a more geographically dispersed clientele than simply the renters in Chicago, getting art cinema on VHS and DVD to customers without a specialty video store in their vicinity. But these companies are confronting new technological changes as well. Like the Criterion Collection, all three are now making ventures into the Blu-ray DVD market, despite the additional costs and somewhat marginal benefits of this technological change. In this, they are betting on the fact that their established brand identities, which signify cinematic quality, will coordinate with a new industry standard that promises technological quality. And like previous ventures, they release Blu-ray editions based on their DVD track record; Kino is offering films by Buster Keaton (*The General*, 1936,

[38] Ben Fritz, "Sony Pictures' David Bishop: In the Thick of Home Entertainment's Evolution," Los Angeles Times, 18 February 2010, http://articles.latimes.com/2010/feb/18/business/la-fi-ct-facetime18-2010feb1B (accessed 2 May 2010).

[39] Chris Anderson, "The Long Tail," *Wired*, October 2004, http://www.wired.com/wired/archive/12.10/tail.html (accessed 2 May 2010).

[40] Personal interview with anonymous Hollywood executive, 18 March 2010.

and *Steamboat Bill, Jr.*, 1928) and Wong Kar-Wai (*Fallen Angels*, 1995), while Facets is offering a more limited number of titles, taking a "wait and see" approach to new media technologies.

But the real elephant in the room of home video distribution is VOD and internet streaming, and all three of these companies are cautious, even hesitant, in their approaches toward these delivery systems. One possible model for new media art cinema can be seen in the website called Mubi, which was originally called "The Auteurs" in an interesting gesture toward quality. On this website, one can stream any number of both classic art house films as well as more contemporary prestige pictures. The company was formed in 2007 with funding from Goldman Sachs, and it was conceived as an online outlet for "under distributed films." More importantly, the goal was to overcome time-space barriers for people who like art cinema, so that one could watch "*In the Mood For Love* in a cafe in Tokyo on your laptop," for instance.[41] Although the original intent of Mubi was to make such movies available for free, the vast majority of their offerings cost around $3. Unlike other distribution models, including some online firms, Mubi does not ask for any minimum from the rights holders in payment for the service of putting the movie online, and they split the revenue fifty-fifty with the rights holder of any film that gets streamed. Notably, Mubi partnered early on with The Criterion Collection, allowing them to distribute a selection of Criterion films. Criterion even allows the website to stream six of their films for free each month. Kino International has also partnered with Mubi, so one can stream a number of their films as well. These partnerships aim to expand the technological bounds of quality cinema by drawing upon existing cultural wealth, and this could simultaneously consecrate the Mubi website itself as a new site for the production of cultural wealth.

In terms of a practical cultural logic, Mubi exists in the realm of the long tail, but in a significantly different way than something like Netflix. In their own terms, Mubi takes a "strategic approach" by being very selective about titles and only offering a restricted number. Accordingly, Mubi, like Criterion or Zeitgeist, aims to create a sense of value out of exclusivity. This endeavor is tricky on the internet, of course. One worker at Mubi even admits that, in use, the website serves as a tool of discovery rather than a tool of viewing for most visitors; people go there to pre-shop for their DVDs. But, through the social networking and chat forum features on the Mubi website, they also allow for interactions around media that are not immediately reduced to commercial transactions. In this way, the website distributes both movies as well as a discourse around them; given their infrastructure, Mubi may indeed indicate how notions of restricted, exclusive, and prestigious forms of media wealth could circulate more widely. If we are to believe the techno-utopian hype, art cinema—from the art house to your house—will soon be everywhere and nowhere in particular.

Thus we find another instance of the transfer and transformation of quality cinema from one techno-social formation to another, and with it another moment of danger for the cultural industries. Mubi, like Facets, Kino, and Zeitgeist before them, demonstrates how, in the realm of cultural production, the distribution of wealth necessarily intertwines with distribution as a process of exchange and commodity circulation. Although in classical Marxist critical political economy the circulation of capital has as its objective the realization of surplus value, the apparent generation of money from money, "circulation" in the cultural

[41] "About," *Mubi.com*, http://mubi.com/about (accessed 12 August 2010).

realm necessarily involves *ideas* of value, values about value. And these values are not stationary either; the circulation of cultural commodities does not merely put into motion money and objects, but also competencies, tastes, and practices of use. These all must circulate as well. For their part, Kino, Facets, and Zeitgeist all distributed quality as a quality and helped cinephiles feel at home at home.

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